

Board of Zoning Appeals August 28th 2025

Meeting Metadata	Details
Video Recording	https://www.youtube.com/watch?v=-ZzacZXGKxo
Publication Date	2025-08-29T10:40:41Z
Target Category	delaware_county

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Meeting Summary: Delaware Metropolitan Board of Zoning Appeals

Meeting Date: August Regular Monthly Meeting

Report Release: Civic Analytical Report

1. Meeting Identification & Attendance

- **Call to Order & Spoken Details:** The presiding officer called the August regular monthly meeting of the Delaware Metropolitan Board of Zoning Appeals to order [00:00:27](#).
- **Attendance:**
 - **Present (Quorum Achieved - 5 members):** Mr. Billington, Miss Kaiser, Miss Knap, Miss Matthew, and Miss French.
 - **Absent:** Miss Brandon (implied by roll call sequence).
 - **Presiding Officer:** Not explicitly named by title, but led the proceedings.

2. Preliminary & Procedural Business

- **Ceremonial Openings:** The meeting opened with the Pledge of Allegiance led by the board [00:00:36](#).

- **Approval of Minutes:** The board considered the minutes from the July monthly meeting. A motion to approve was made and seconded, followed by a roll call vote.
 - **Vote Disposition:** Passed Unanimously (5-yes roll call vote) 00:02:11.
 - **Housekeeping & Voting Rules:** The chair outlined hearing procedures, emphasizing courtesy, cellular phone silencing, and the statutory requirement that four board members must vote in favor or against a case for official action to be taken at the meeting. Cases without a 4<U+2013>1 or 5<U+2013>0 vote automatically continue to the September meeting.
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3. Substantive Business & Board Action

00:03:59 BZA 32-25: Variance Application by Muncie Aviation Company

- **Sponsor / Presenter:** Nick Tokar, attorney representing Muncie Aviation (accompanied by Britney Ray, Vice President, and Julie Bearing, real estate broker).
- **Deliberation Summary:** The applicant requested a variance from the Delaware County Comprehensive Zoning Ordinance to allow access for a proposed restaurant via an ingress/egress agreement with the airport, permit offsite ADA parking, and reduce side and rear setbacks for a property located at 5201 North Walnut Street (Hamilton Township). The property lacks direct Walnut Street access due to subdivision and relies on adjacent parking owned by the Delaware County Airport Authority. The proposal previously went before the plat committee with a recommendation for approval.
- **Item-Specific Public Input:** None.
- **Action & Vote Disposition:** Approved with hardships stated on the record via a roll call vote (5-yes tally) 00:09:55.

00:10:43 BZA 33-25: Use Variance Application by JRF Management LLC

- **Sponsor / Presenter:** Joe Jackson, JRF Management LLC.
- **Deliberation Summary:** The applicant requested a use variance from the City of Muncie Comprehensive Zoning Ordinance to allow a multifamily duplex unit (two 5-bedroom units) to operate in a single-family residential zone on premises located at the northwest corner of North Madison Street and East Berkeley Street. This development, combined with an existing dwelling renovated for family use, creates a total of three dwellings on the parcel. The applicant noted a community shortage of large family housing units and confirmed he walked the neighborhood and received no negative feedback. Following board discussion regarding parcel splitting, a condition was attached to ensure the single-family home and duplex are formally platted on separate parcels.
- **Item-Specific Public Input:** None.
- **Action & Vote Disposition:** Approved with the explicit condition that the property be split so the single-family home and duplex reside on separate plats, adopted via a roll call vote

(5-yes tally) 00:17:01.

00:17:55 BZA 34-25: Use Variance Application by Daniel C. New House

- **Sponsor / Presenter:** Daniel C. New House, 4313 North Janney Avenue.
 - **Deliberation Summary:** The applicant requested a use variance from the City of Muncie Comprehensive Zoning Ordinance to allow a reduced front setback for a proposed 20-foot by 22-foot professionally installed carport at 4313 North Janney Avenue. The structure will sit approximately 17 feet from the street. The applicant clarified that the carport is intended to protect personal automobiles and equipment for his pressure-washing service business, though no business operations or customer visits will take place on the residential property. Board members questioned potential sight-line obstructions, which the applicant confirmed would not be an issue.
 - **Item-Specific Public Input:** None.
 - **Action & Vote Disposition:** Approved with the hardships stated therein via a roll call vote (5-yes tally) 00:23:11.
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4. Open Public Comment / Citizen Forum

- *Note: No general open public comment period or citizen forum was conducted outside of the specific public hearings detailed above.*
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5. Administrative Updates & Adjournment

- **Staff & Board Announcements (00:24:00):**
 - **TIP Approval:** The Director reported that the 4-year Transportation Improvement Program (TIP) has received final approval from the Federal Highway Administration and INDOT. Fiscal Year 2026 local urban project allocations total approximately \$3.3 million, featuring continued engineering/construction phases for Titson Road and McGalliard Road, and two new roundabout projects (Cowan/Fusen Road and Tiger Drive/River Road).
 - **ADA Transition Plan:** The Delaware County ADA Transition Plan has been completed as a 200-page assessment of county-owned buildings, including cost estimates and corrective recommendations. It is available on the office website.
 - **Solar Ordinance:** The Plan Commission issued a favorable recommendation on the solar ordinance on August 12th, which moves to the commissioners for a hearing on September 15th.
 - **County Budget Hearings:** County budget hearings begin next week (Wednesday through Friday), with the department scheduled to present to County Council on Wednesday at 10:00 AM.

- **Rules of Procedure:** The board discussed scheduling a review of draft rules of procedure, agreeing to place it on the agenda for the next meeting if the agenda remains light (5 or fewer cases), or schedule a special meeting if caseloads are heavy.
 - **Adjournment:** A motion to adjourn was made and approved 00:31:30.
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